

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: June 4, 2026

#	Case Name	Tentative
2.	30-2024-01418820 PC Group Retail, LLC vs. Saenz & Saenz, LLC	1. Motion for Continuance of Trial Motion for Leave to Amend Defendant Linda Saenz (“Defendant”) filed two motions: (1) a motion for leave to amend her answer and (2) a motion to continue trial from June 22, 2026 to a date between September 2026 and November 2026. Plaintiff PC Group Retail, LLC (“Plaintiff”) opposed both motions. Based on applicable law, and as set forth herein, the motions are GRANTED. I. MOTION FOR LEAVE TO AMEND Defendant moves to amend her answer to include additional affirmative defenses. Pursuant to Code of Civil Procedure section 473, the court may allow a party to amend any pleading in furtherance of justice. (Code Civ. Proc., § 473(a).) Pursuant to Code of Civil Procedure section 576: “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.) When a party seeks to amend a pleading, the motion to amend must include a copy of the proposed amendment, state the allegations to be deleted, and state allegations to be added. (Cal. Rules of Court, rule 3.1324, subd. (a).) Moreover, the moving party must submit a declaration that specifies: “(1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b).) Courts liberally allow amendments to permit lawsuits to be determined on their merits. (<i>Nestle v. Santa Monica</i> (1972) 6 Cal.3d 920, 939; <i>Desney v. Wilder</i> (1956) 46 Cal.2d 715, 751.) “It is well established that ‘California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’” (<i>Board of Trustees v. Superior Court</i> (2007) 149 Cal.App.4th 1154, 1163.) Here, the Court finds that the Declaration of Myle Nguyen provides the requisite information regarding the amendment as discussed in California Rules of Court, rule 3.1324 and such an amendment is necessary in furtherance of justice.

Moreover, as Defendant points out in the reply in support of the motion to amend, Plaintiff did not address the motion to amend answer in the omnibus opposition. Accordingly, Plaintiff's non-opposition to the motion to amend is considered an implied concession to the merits of Defendant's arguments presented in the motion. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566, *as modified* (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].)

As such, the Motion for leave to file an amended answer is **GRANTED**.

Defendant shall file the proposed amended answer attached as Exhibit 2 to the Declaration of Myle Nguyen within 5 days of this order.

II. MOTION TO CONTINUE TRIAL

"A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations." (Cal. Rules of Court, rule 3.1332, subd. (b).)

"The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, rule 3.1332, subd. (c).) Circumstances that may indicate good cause include:

"(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

		(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.” (Cal. Rules of Court, rule 3.1332, subd. (c).) Other factors to consider include: “(1) [t]he proximity of the trial date; (2) [w]hether there was any previous continuance, extension of time, or delay of trial due to any party; (3) [t]he length of the continuance requested; (4) [t]he availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) [t]he prejudice that parties or witnesses will suffer as a result of the continuance; (6) [i]f the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) [t]he court’s calendar and the impact of granting a continuance on other pending trials; (8) [w]hether trial counsel is engaged in another trial; (9) [w]hether all parties have stipulated to a continuance; (10) [w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) [a]ny other fact or circumstance relevant to the fair determination of the motion or application.” (Cal. Rules of Court, rule 3.1332, subd. (d).) Here, the Court finds that the factors weigh in favor of continuing trial. Defendant seeks to substitute trial counsel. This substitution is required in furtherance of justice because Defendant will now be represented by counsel instead of proceeding in pro per and will be better position to prepare her defense. The requested continuance is reasonable as Defendant is only requesting a 3-5 month continuance. Defendant states that she needs to conduct additional discovery in order to prepare her case for trial. The Court finds that the 3-5 month continuance will sufficiently allow Defendant to conduct the requisite discovery, especially because this is a straightforward breach of guaranty action. The Court acknowledges that Defendant had two years to retain counsel and only now seeks to retain counsel as trial is approaching. Still, the continuance is short and therefore the Court finds any prejudice Plaintiff may experience by this short delay is minimal and not sufficiently consequential to bar the continuance. The Motion is GRANTED. Trial is CONTINUED to September 14, 2026 at 9:00 am in c34. All discovery and pretrial dates shall be calculated from the new trial date. Moving party to give notice.
3.	30-2025-01475801 Mercury Insurance Company vs. Cabral	1. Motion to Set Aside/Vacate Default and Judgment Defendant, Aracely Leon-Cabral “ESA Aracely Leon Cabral” (“Leon-Cabral”), in pro per, moves for an order setting aside the entry of default and/or default judgment entered against Defendant on August 21, 2025. On April 6, 2026, the Court continued the instant motion to set aside and ordered Defendant Leon-Cabral to file and serve a copy of her proposed answer no later than May 21, 2026. (ROA 47.) Defendant Leon-Cabral filed and served a copy of her Answer as ordered. (See ROA 49.) The Answer filed on May 21, 2026, is deemed filed on that date.

The Court **GRANTS** Defendant Leon-Cabral’s motion to set aside the entry of default and default judgment as set forth in the Court’s April 6, 2026, Minute Order which is incorporated herein and set forth below, in relevant part.

No opposition has been filed.

Code of Civil Procedure section 473(b) states:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

“The motion for relief must be made within six months after entry of the default, and the party moving to set aside the default has the burden of showing good cause for relief. [Citation.]” (*Shapell Socal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 212 (“*Shapell*”).) “The provisions of section 473 . . . are to be liberally construed and sound policy favors the determination of actions on their merits. [Citation.] [Citation.]” (*Ibid.*, quotations omitted.).)

“ ‘[A] party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence. [Citations.]’ ” (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 623-624.) In a motion under section 473, the initial burden is on the moving party to prove inadvertence, surprise, excusable neglect or mistake by a “preponderance of the evidence.” (*Id.* at p. 624.) “The moving party has a double burden: He must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default. [Citation.]” (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1420, internal quotations omitted.) Whether the moving party has successfully carried this burden is a question entrusted to the discretion of the trial court and its ruling will not be disturbed in the absence of a demonstrated abuse of that discretion. (*Hopkins & Carley v. Gens* (2011) 200 Cal. App. 4th 1401, 1410.)

“ ‘ “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations ‘very slight evidence will be required to justify a court in setting aside the default.’ [Citations.] ¶¶ Moreover, because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default” ’ [Citation.]” (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 28.)

Here, default was entered on August 21, 2025, and Plaintiff filed the instant motion to set aside on September 18, 2025, promptly after learning of the default on September 3, 2025. (Declaration of Aracely Leon-Cabral, ¶¶ 4, 7.) Therefore, it is timely brought.

		As noted above, the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default, and where a party seeking relief makes a strong showing of diligence in seeking relief after discovery of the facts, and the opposing party is unable to show prejudice from the delay, the negligence in allowing the default to be taken will be excused on a weak showing. Defendant, Aracely Leon-Cabral (“Leon-Cabral”), has made a showing of diligence in seeking relief after discovery of the default as she promptly filed the instant motion on September 18, 2025, after learning of the default on September 3, 2025. There is no opposition, and it seems unlikely that there is prejudice since there was little delay and the case is still in the early stages. Plaintiff has just proceeded by default. Thus, Defendant Leon-Cabral need only make a weak showing of mistake, inadvertence, and/or excusable neglect. “[A]s for inadvertence or neglect, ‘[t]o warrant relief under section 473 a litigant’s neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances . . . It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. [Citation.] Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.’ [Citation.]” (<i>Hearn v. Howard</i> (2009) 177 Cal.App.4th 1193, 1206.) Defendant Leon-Cabral provides that on or about June 15, 2025, Defendant was served with a summons and complaint and states: “At that time, I did not understand the summons or the legal terminology contained in it. I mistakenly believed that I didn’t need to file a response right away, and/or that I would have the opportunity to address the matter in person at a later date.” (Declaration of Aracely Leon-Cabral, ¶ 2.) Defendant also states: “Because of my misunderstanding, and due to the fact that I have no legal training or knowledge of court procedures, I failed to file a timely response to the Complaint,” and that the failure to respond was “the result of my lack of understanding of the process and legal terms used in summons.” (<i>Id.</i>, ¶¶ 3, 5.) The Court finds that Defendant Leon-Cabral has made a showing of diligence in bringing the instant motion and a sufficient showing of inadvertence and/or excusable neglect to set aside the entry of default and subsequent entry of default judgment on December 2, 2025 (ROA 32). The Court orders clerk to give notice.
4.	30-2024-01396557 McNelis vs. Volkswagon Group of America, Inc	1. Application/Request Defendants Volkswagen Group of America, Inc. and Unstoppable Automotive AMV, LLC dba Audi Mission Viejo (“Defendants”) apply to this Court for an order setting aside the settlement entered into with plaintiffs Brooke McNelis and Patrick Michael Daly (“Plaintiffs”) and/or relief from entry of judgment on Defendants’ statutory offer pursuant to Code of Civil Procedure section 473(b).

Defendants argue that their statutory 998 Offer contains a typographical error regarding the amount that they agreed to pay. They argue that relief is warranted under Code of Civil Procedure section 473(b) due to this excusable mistake.

On October 9, 2025, this Court denied Defendants' ex parte application to set aside the parties' settlement. The Court ruled that Defendants were not diligent in seeking relief, as they failed to do anything about correcting the claimed error after Plaintiffs filed their Motion to Enforce Settlement on July 21, 2025 until **October 6, 2025**. Defendants admitted in the application that they were aware of the error as early as May 22, 2025 and still did nothing until their ex parte application was filed on October 6, 2026.

Defendants again argue that the error in the 998 Offer was due to an internal case transfer. However, the counsel who signed the 998 Offer also appears on the caption page of the moving papers and is the same counsel who has submitted a declaration in support of the instant motion. Therefore, as it did with regard to the ex parte application, the Court rejects this argument.

The mandatory relief provision of Code of Civil Procedure section 473(b) provides: "Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." This provision does not apply here, where no default or default judgment or dismissal has been entered against Defendants. (See *Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438 ["mandatory relief provision is narrower in scope insofar as it is only available for defaults, default judgments, and dismissals"].)

Defendants alternatively argue that relief is warranted even if the mandatory provision does not apply due to their counsel's excusable mistake.

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473(b).)

It is not clear whether the 998 Offer constitutes a "proceeding" taken against Defendants. Even assuming it does, the 998 Offer was accepted by Plaintiffs on March 19, 2025 and Defendants therefore had until September 19, 2025 to bring an application for relief under section 473(b). They did not file the instant application until October 17, 2025. A party seeking discretionary relief under section 473 must act diligently. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1419.) Defendants have failed to act diligently here. Thus, they are not entitled to relief under the discretionary provisions of section 473(b).

In light of the above, the application for relief is **DENIED**.
Defendants to give notice.

5.	30-2024-01382035	1. Motion to Compel Production
Frank Recruitment Group, Inc vs. Loko AI, Inc		Plaintiff/Cross-Defendant, Frank Recruitment Group Inc. (“FRG”) moves for an order compelling Cross-Complainant Loko AI, Inc. (“Loko”) to produce documents in accordance with Responses to Request for Production of Documents, Set One. FRG contends that on March 21, 2025, FRG propounded Request for Production of Documents, Set One to Loko, and that on May 7, 2025, Loko served responses to FRG’s Request for Production of Documents, Set One, providing that it would comply with each request, but that no documents have been produced. Code of Civil Procedure section 2031.320(a) provides that a party may move for an order compelling compliance if a party serving a response to an inspection demand thereafter fails to permit inspection in accordance with that party’s statement of compliance. The opposition asserts and the reply acknowledges that after the filing of this motion on November 17, 2025, Loko served its document production on February 23, 2026. (Supplemental Declaration of Patrick A. Hormillosa, ¶¶ 3-4 (“Reply Hormillosa Decl.”).) Therefore, the request to compel the production of documents is MOOT. To the extent that FRG contends that the document production is incomplete, and that the document production is missing documents identified in Loko’s other discovery responses that would be responsive to Request for Production, Set One, Nos. 12, 15, 16, and 32, that is a new argument raised in reply. Additionally, FRG does not argue that no documents were produced in response to the abovementioned requests. Further, these other discovery responses to which FRG refers, are supplemental responses that were served subsequent to Loko’s document production. What remains is FRG’s request for monetary sanctions. <i>Monetary Sanctions</i> The motion requests that the Court award FRG monetary sanctions in the amount of \$3,612.50 against Loko pursuant to Code of Civil Procedure section 2031.320(b) and 2023.030(a). “[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.320(b).) Additionally, the court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney’s fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010(d).)

“The purpose and effect of sections 2023.030(a) and 2031.320(b) is not to punish but to compensate a litigant for costs that litigant incurred as a result of another litigant’s misuse of the discovery process.” (*Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1151.)

Loko does not contend that it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Instead, Loko first contends that the request should be denied outright as it fails to comply with Code of Civil Procedure section 2023.040.

FRG contends that the motion clearly specifies that they are seeking discovery sanctions against Loko and their counsel in the amount of \$3,612.50.

Code of Civil Procedure section 2023.040 provides: “A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.”

The individual or party against whom the sanctions are sought must be identified in the notice of motion and supported by evidence. (*Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316, 321 [no monetary sanctions where notice of motion and the declaration accompanying that notice of motion did not comply with Code of Civil Procedure section 2023.040, stated no amount and no facts supporting any amount of monetary sanction, and only detailed the meet and confer process]; *Corralejo v. Quiroga* (1984) 152 Cal.App.3d 871, 874 [order imposing sanctions on attorney reversed where notice of motion did not clearly provide that sanctions were being sought against attorney]; cf. *Sole Energy Co. v. Hodges* (2005) 128 Cal.App.4th 199, 207-210 [default judgment reversed because moving party failed to specify in notice of motion that it sought terminating sanction, although notice of motion sought monetary sanctions and memorandum of points and authorities advised court it could consider terminating sanction].)

Here, the notice of motion provides that “a monetary sanction is warranted under Code of Civil Procedure sections 2023.030(a) and 2031.320(b) for the abuse of discovery by Loko and their counsel.” (ROA 76, Notice of Motion, 2:5-6.) The notice of motion specifies the type of sanctions sought, i.e., monetary sanctions, and sufficiently identifies that FRG seeks sanctions against Loko and their counsel.

FRG contends, in the alternative, that the request for \$3,612.50 should be significantly reduced as \$2,550 of the this total is for an ex parte application for the setting of the hearing on this motion and not on this motion itself such that it should not be awarded, and that the remaining \$1,062.50 is a request for 2.5 hours of work on the motion which is unreasonable looking at the work product in this motion, and that the amount of monetary sanctions, if any are awarded, should not be more than one hour’s worth of time, or \$425.

Initially, the amount requested in the moving papers and the reply is the same, i.e., \$3,612.50. There is no dispute as to the requested \$425 hourly rate. (Declaration of Patrick A. Hormillosa, ¶ 15.) The declaration filed in support of the moving papers sought \$2,550 for anticipated costs to draft an ex parte application, to review the opposition, to prepare a reply, and to attend the hearing on the motion totaling six (6.0) hours. (*Id.*) The supplemental declaration filed in reply provides that 2.0 hours was expended for the ex parte

		application for order shortening time on hearing for motion, 3.0 hours to review the opposition and to draft the reply, and an anticipated 1.0 hours to attend the hearing. The Court finds that 2.0 hours to review the opposition and to draft the reply, and 1.0 hours to attend the hearing to be reasonably incurred for this motion. With regards to the time to draft and prepare the instant motion, FRG requests \$1,062.50 for 2.5 hours of work. Given the relatively simple nature of this motion, the Court finds 1 hour to be reasonably incurred for drafting this motion. Based on the foregoing, the Court GRANTS monetary sanctions in the reduced amount of \$ 1,700 (\$425 x 4 hours) against Loko and its counsel, to be paid within 30 days. <i>Loko's Objection to Reply Declaration</i> Loko objects to the supplemental reply declaration of Patrick Hormillosa as entirely additional evidence. The general rule of motion practice is that new evidence is not permitted with reply papers, and should only be allowed in an exceptional case. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) If allowed, the other party should be given an opportunity to respond. (<i>Id.</i> at p. 1538.) There is an exception for points that are strictly responsive to arguments made for the first time in opposition. (<i>Golden Door Properties, LLC v. Superior Court of San Diego County</i> (2020) 53 Cal.App.5th 733, 774.) Upon review of the supplemental reply declaration, paragraphs 1-4 and 7 are responsive to arguments raised in the reply, i.e., that Loko produced documents and that FRG's request for monetary sanctions should be significantly reduced. Therefore, the Court considers those portions of the supplemental reply declaration. Paragraphs 5 and 6 present new evidence which is not responsive to arguments raised in the moving papers or reply. The Court disregards these paragraphs. FRG to give notice.
6.	30-2024-01372374 Associated Ready Mixed Concrete, Inc vs. GT Commercial Concrete, Inc	1. Motion to Deem Facts Admitted 2. Motion to Deem Facts Admitted Plaintiff Associated Ready Mixed Concrete, Inc. ("Plaintiff") moves for an order that Plaintiff's First Set of Requests For Admissions propounded upon defendants Todd Hand and GT Commercial Concrete, Inc. ("Defendants") on July 25, 2025 be deemed admitted. Plaintiff also seeks monetary sanctions against Defendants and their counsel. However, the Court Trial in this matter was set for December 1, 2025 when these motions were filed with all discovery deadlines to be based on that trial date. (See ROA 75.) Parties may have motions concerning discovery heard on or before the 15th day before the date initially set for the trial of the action. (Code Civ. Proc., § 2024.030(a).) Plaintiff filed these motions with a hearing date of June 4, 2026, knowing that they would not be heard until after the then-set trial date and made no attempts to advance the hearing date. Thus, the motions are DENIED. Plaintiff to give notice.

7.	30-2024-01416560 Rodriguez vs. CR&R Incorporated	1. Motion to Compel Further Responses to Special Interrogatories 2. Motion to Compel Production Defendant CR&R INCORPORATED (hereinafter, “CR&R”) moves this Court to compel Plaintiff JOEL MARTIN RODRIGUEZ, (hereafter “Plaintiff”), to provide verified further responses to CR&R’s Request for Production, Set Two, Nos. 38 and 39, pursuant to Code of Civil Procedure §2031.210, 2031.220, 2031.280, and 2031.310. (ROA 84) Defendant CR&R INCORPORATED (hereinafter, “CR&R” or “Defendant”) moves this Court, pursuant to Code of Civil Procedure section 2030.010 et seq, for the following: 1. An Order compelling Plaintiff, JOEL MARTIN RODRIGUEZ (hereinafter “Plaintiff”) to respond to CR&R Incorporated’s Special Interrogatories, Set Two without objections within ten (10) days of the hearing on this Motion; and 2. Monetary sanctions in the amount of \$1,260.00 against Plaintiff and/or his counsel pursuant to Code of Civil Procedure sections 2023.010 and 2030.300(d). (ROA 85) The unopposed Motions are GRANTED pursuant to the arguments and authorities raised in the motions. Plaintiff’s response to RPDs are not clear. As to Special Interrogatory No. 82, Plaintiff’s objections have not been justified. [<i>Coy v. Sup.Ct. (Wolcher)</i> (1962) 58 C2d 210, 220-221; <i>Fairmont Ins. Co. v. Sup.Ct. (Stendell)</i> (2000) 22 C4th 245, 255.] Further responses, without objections, to be provided within 15 days of service of the notice of ruling. Sanctions against Plaintiff and his counsel, joint and severally, in the amount of \$1,260 to be paid within 30 days. Defendant to give notice.
8.	30-2024-01413986 Crossroads Equipment Lease and Finance, LLC vs. 3531 Trucking, Inc	1. Motion to Enforce Settlement 2. Order to Show Cause re: Dismissal on Settled Case Plaintiff, CROSSROADS EQUIPMENT LEASE AND FINANCE, LLC (“Plaintiff”) moves this Court pursuant to Code of Civil Procedure §§ 664.6 and 128, to enforce a settlement agreement between Plaintiff and Defendants 3531 TRUCKING, INC. and MIGUEL A. MIRANDA (“Defendants”) (collectively, the “Parties”) and enter judgment pursuant to a Stipulation for Entry of Judgment (the “Stipulation”) entered into by and between the Parties. The uopposed Motion is GRANTED. The court is empowered to enter judgment where parties to pending litigation stipulate to a settlement in a writing signed by the parties or their counsel outside court. [CCP § 664.6(a), (b)] Here, on 6/30/2025 the parties herein signed a “Stipulation to Entry of Judgment” (Decl. St. Clair¶3, Ex. A.) wherein Defendants stipulate to entry of judgment against them, jointly and severally, in favor in the amount of \$44,637.72. However, the parties also agreed to hold off on entering judgment to allow Defendants to make payments. The Declaration of Plaintiff’s Senior Recovery Specialist states Defendants made \$12,000 worth of payments, but then defaulted. (Decl. of St. Clair¶5.) As such, pursuant to the agreement and law, Plaintiff is entitled to the remaining principal, interest, attorneys fees, costs, and possession of the equipment.

		Plaintiff to submit a proposed Judgment for \$42,020.55 and possession of the 2016 Peterbilt, VIN 1XPXP4EX0GD318094 and 2018 Peterbilt, VIN 1NPCLJ0X4JD488038. Plaintiff to give notice.
9.	30-2025-01507039 Cordova vs. Indigo Master Participation, LP	1. Case Management Conference 2. Motion to Dismiss Defendants Indigo Master Participation, LP; Indigo Private Credit Fund II, LP (“Fund 2”); Indigo Private Credit Fund III, L.P.; Indigo Partnership Holdings, LP; Indigo PC-III Private Account I, LP (“Fund 3”); IGI Partners II PF, LLC; IGI Partners III MPAS, LLC; Indigo Commercial Funding II, LLC; Indigo Commercial Funding, LLC; Indigo Commercial Funding I-B, LLC; Indigo Global Advisors, LLC; Indigo Direct Services, LLC; Indigo Direct Lending, LLC; Indigo Investment Servicing, LLC; Brent E. Carey, Mary Kay Parsek, and Erik Jordan (collectively, “Defendants”) move for an order dismissing this action filed by plaintiff Thomas Cordova (“Plaintiff”) or staying in pursuant to the doctrine of forum non conveniens and the parties’ forum selection clause. “ ‘A defendant may enforce a forum-selection clause by bringing a motion pursuant to sections 410.30 and 418.10, the statutes governing forum non conveniens motions, because they are the ones which generally authorize a trial court to decline jurisdiction when unreasonably invoked and provide a procedure for the motion. [Citations.]’ ” (<i>Korman v. Princess Cruise Lines, Ltd.</i> (2019) 32 Cal.App.5th 206, 214.) “ ‘In a contract dispute in which the parties’ agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive.’ ” (<i>Id.</i> at p. 215.) “A clause is mandatory if it requires the parties to litigate their disputes exclusively in the designated forum, and it is permissive if it merely requires the parties to submit to jurisdiction in the designated forum. A permissive forum selection clause is subject to traditional forum non conveniens analysis to determine whether the designated forum is a suitable alternative forum and whether the balancing of various private and public interest factors favors retaining the action in California. These traditional forum non conveniens factors are not considered when a mandatory forum selection clause exists.” (<i>Verdugo v. Alliantgroup, L.P.</i> (2015) 237 Cal.App.4th 141, 147, fn 2 [internal citations omitted].) “ ‘When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. [Citation.]’ ‘Both California and federal law presume a contractual forum selection clause is valid and place the burden on the party seeking to overturn the forum selection clause. [Citations.]’ ‘It is well settled that parties may contract in advance to select the forum in which their disputes will be adjudicated. [Citation.]’ ” (<i>Korman, supra</i>, 32 Cal.App.5th at p. 216 [internal citations omitted].) “ ‘In the context of forum selection clauses, enforcement is considered unreasonable where “the forum selected would be unavailable or unable to accomplish substantial justice” or there is no “rational basis” for the selected forum. [Citation.]’ ” (<i>Korman, supra</i>, 32 Cal.App.5th at p. 216 [internal citations omitted].) “ ‘ “ ‘Mere inconvenience or additional expense is not the test of unreasonableness . . .’ ” for a mandatory forum selection clause. [Citation.]’ [Citation.] A clause is reasonable if it has a logical connection with at least one of the parties or their transaction.” (<i>Verdugo, supra</i>, 237 Cal.App.4th at p. 147.)

Plaintiff alleges that he was fraudulently induced into making investments in Fund 2 and Fund 3. (Compl. ¶¶ 25, 30.) Fund 2 entered into an Amended and Restated Limited Partnership Agreement dated February 25, 2020 (“LPA II”) and Fund 3 entered into a Limited Partnership Agreement dated September 1, 2021 (“LPA III”). (Compl. ¶¶ 26, 35.) Under LPA II and LPA III, Defendants are required to make distributions within 30 days following the end of each fiscal quarter during the term of each fund. (Compl. ¶ 36.) Plaintiff alleges that he is owed overdue distributions from both Fund 2 and Fund 3, as well as unreturned investments. (Compl. ¶¶ 87-88.)

LPA II and LPA III contain identical forum selection clauses, which provide:

11.9 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware. In particular, the Partnership is formed pursuant to the Act, and the rights and liabilities of the Partners shall be provided therein, except as herein otherwise expressly provided. If any provision of this Agreement shall be held to be invalid, the remainder of this Agreement shall not be affected thereby. Any action or Proceeding against the parties relating in any way to this Agreement may be brought and enforced in the courts of the State of Delaware located in the United States District of Delaware, to the extent subject matter jurisdiction exists therefor, and the parties irrevocably submit to the non-exclusive jurisdiction of each of those courts in respect of any such action or proceeding; provided, that with regard to any actions brought against the General Partner or its Affiliates and employees, such jurisdiction shall be exclusive unless otherwise expressly agreed by the General Partner.

Plaintiff argues that the forum selection clauses are not mandatory because the language is ambiguous. This argument is unpersuasive. While the forum selection clauses are only permissive as to other actions, they clearly provide that jurisdiction in the State of Delaware is mandatory as to any actions brought against the General Partner or its Affiliates and employees. The General Partners are IGI Partners II PF, LLC and IGI Partners III MPAS, LLC, both of which are named defendants here. Thus, the Court finds that the mandatory provision of the forum selection clauses applies here and must be enforced unless enforcement would be unfair or unreasonable.

All of the named entity defendants are Delaware entities formed under Delaware law. Thus, the forum has a logical connection with multiple parties here. While Plaintiff argues against enforcement by pointing to numerous connections between California and his claims, the relevant question is whether Delaware has a logical connection with at least one party or the transaction underlying this action, not whether it has more connections or a stronger connection than Plaintiff’s selected forum. The Court finds that Delaware has a rational basis to multiple parties here.

Plaintiff argues that the forum selection clauses are adhesive and go beyond his reasonable expectations. The fact that a contract is one of adhesion alone does not render it unenforceable. (See *Carmona v. Lincoln Millenium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84 n.4; *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248-50.) Further, to demonstrate unenforceability due to unconscionability, Plaintiff must show both that the forum selection clauses are procedurally *and* substantively unconscionable. (*Carmona*, 226 Cal.App.4th at p. 85.) Plaintiff does not argue that they are substantively unconscionable. Thus, Plaintiff’s unconscionability argument fails.

Plaintiff argues that the forum selection clause is unenforceable because he alleges that the LPA II and LPA III were entered into through fraudulent inducement. Plaintiff cites to *Drulias v. 1st Century Bancshares, Inc.* (2018) 30 Cal.App.5th 696 in support of his argument. However, Plaintiff misrepresents the holding of that case, contending that the *Drulias* court held that a forum selection clause will only be enforced if it was freely or voluntarily negotiated. In fact, the court rejected the plaintiff's argument that forum selection clauses are enforceable only where they are freely and voluntarily negotiated, noting that the analysis only asks whether the selected forum is unavailable to accomplish substantial justice or has no rational basis to the action. (*Id.* at p. 707.) The court went on to note that "neither California nor Delaware law requires forum selection clauses be freely negotiated to be enforceable." (*Ibid.*) Thus, *Drulias* does not support Plaintiff's fraudulent inducement argument.

Plaintiff contends that Delaware is unable to accomplish substantial justice because California has heightened protections against fraud in connection with the sale of securities under the Corporate Securities Act. However, Plaintiff has not asserted any cause of action under the Act. Therefore, this argument has no weight. (*Intershop Communications v. Superior Court* (2002) 104 Cal.App.4th 191, 200 [dismissing public policy argument as to California securities laws where the plaintiff had no cause of action based on a violation of those securities laws].)

Lastly, Plaintiff argues that the forum selection clauses do not apply to all Defendants and that discovery is needed to determine the affiliations (or lack thereof) between Defendants.

A forum selection clause may be enforced against a plaintiff who is not a party to the contract in question where the nonsignatory has a closeness to the contractual relationship. (*Net2Phone, Inc. v. Superior Court* (2003) 109 Cal.App.4th 583, 588.) For instance, in *Lu v. Dryclean-U.S.A. of California, Inc.* (1992) 11 Cal.App.4th 1490, the plaintiffs had entered into an agreement with the defendant franchisor to operate a franchise in California. The plaintiffs filed suit against the franchisor and its corporate parents, alleging misrepresentation of the advantages of operating a dry-cleaning franchise. (*Id.* at p. 1492.) The defendants moved to dismiss based on the forum selection clause in the franchise agreement, which required any disputes arising out of the agreement to be litigated in Florida. (*Ibid.*) The motion to dismiss was granted. On appeal, the plaintiffs argued that the forum selection clause should not be enforced because the corporate parent defendants had not signed the clause. The appellate court rejected the argument and explained:

Here, the alleged conduct of Dryclean Franchise and Dryclean U.S.A. is closely related to the contractual relationship. They are alleged to have participated in the fraudulent representations which induced plaintiffs to enter into the Agreement. Indeed, plaintiffs go so far as to allege Dryclean Franchise and Dryclean U.S.A. are the "alter ego" of Dryclean California, which did sign the Agreement containing the forum selection clause. Under these circumstances, the fact that Dryclean Franchise and Dryclean U.S.A. did not sign the Agreement does not render the forum selection clause unenforceable. [Citations.] To hold otherwise would be to permit a plaintiff to sidestep a valid forum selection clause simply by naming a closely related party who did not sign the clause as a defendant.

(*Id.* at p. 1494.)

		In <i>Bugna v. Fike</i> (2000) 80 Cal.App.4th 229, the appellate court further explained the rationale behind binding nonsignatories to a forum selection clause: The key to the closely related test is whether the nonsignatories were close to the contractual relationship, not whether they were close to the third party signator. This makes sense because the forum selection clause is part of the underlying contract, and it is the contractual relationship gone awry that presumably spawns litigation and activates the clause. Giving standing to all closely related entities honors general principles of judicial economy by making all parties closely allied to the contractual relationship accountable in the same forum, thereby abating a proliferation of actions and inconsistent rulings. (<i>Id.</i> at p. 235.) There, the appellate court affirmed an order staying proceedings as to all parties pursuant to a forum selection clause, including non-signatories of the underlying contract. The court noted that “there is no question but that respondents were closely related to the contractual relationship between SCN and appellants. Indeed, they were key transaction participants—the deal makers who negotiated, evaluated, and otherwise put together the very SCN transactions that appellants now attack. (<i>Ibid.</i>) Here, all of Plaintiff’s causes of action arise out of the alleged false representations made to induce Plaintiff to invest in Defendants’ funds and Defendants’ failure to pay required distributions under LPA II and LPA III. Plaintiff alleges that all Defendants breached their fiduciary duties to Plaintiff as the managers, administrators, organizers, services, and operators of Fund 2 and Fund 3. (Compl. ¶ 134.) Plaintiff also alleges that the limited liability company defendants and limited partnership defendants were at all relevant times the alter egos of one another and the individual defendants and the individual defendants dominated, influenced, and controlled the entity defendants. (Compl. ¶¶ 6-7.) Plaintiff has sued all Defendants, regardless of whether they are parties to the contracts or alleged to have actively engaged in the fraudulent misrepresentations, based on Plaintiff’s resulting contractual relationship. Plaintiff cannot attempt to hold these non-contracting Defendants liable while at the same time side-stepping the forum selection clauses. In light of the above, and based on applicable law, the <u>Motion to Dismiss</u> is GRANTED. Defendants’ request for <u>attorney’s fees</u> pursuant to Code of Civil Procedure section 396b is DENIED, as section 396b is not applicable here. Moving party to give notice.
10.	30-2026-01561390 Cathay Bank vs. Iridium Property Investments, LLC	1. Order to Show Cause re: Preliminary Injunction Plaintiff, Cathay Bank (“Plaintiff” or “the Bank”), applies for an order appointing a receiver over a commercial property generating monthly rents in excess of \$158,000, commonly known as 2201 Alton Parkway and 16940 Von Karman Avenue, Irvine, California, Assessor’s Parcel Number 435-034-12 (the “Property”). Plaintiff contends that the Property secures a fully matured loan by the Bank with an outstanding balance in excess of \$11,400,000.00 (“Loan”) to Iridium Property Investments, LLC (“Borrower” and/or “Iridium”); that the Borrower defaulted under the terms of the loan documents by failing to pay all sums due on the January 15, 2026 maturity date of the Note; that Defendant Michael J. Rogerson (“Rogerson”) and the Michael J. Rogerson Trust Dated

May 7, 2011, as Amended (“Trust”) (collectively, the “Guarantors”) executed their Continuing Guaranties (“Guaranties”) pursuant to which they guaranteed repayment to the Bank of all sums owed by the Iridium to the Bank; that the Guarantors have paid no sums pursuant to the terms of their Guaranties; that under Section 1.11 of the Deed of Trust and Assignment of Rents, the Borrower has expressly consented to the appointment of a receiver; that Code of Civil Procedure section 564(b)(1), (2), (9), and (11) empower the Court to appoint a receiver in the present case because the terms of the Deed of Trust provide Plaintiff with an assignment of all the rents generated from the Property; and that the appointment of a receiver is necessary to take over the management and control of the Property, with the power to collect all rents, revenues and profits, manage, lease, protect and preserve the collateral as without one there is immediate and substantial danger that the collateral may be lost, secreted, and/or misappropriated, all to the detriment and irreparable loss to Plaintiff.

No opposition has been filed.

Receivers are agents of the court, not of any party, and may be appointed only when authorized by statute. (*Marsch v. Williams* (1994) 23 Cal.App.4th 238, 246; Cal. Rules of Court, rule 3.1179(a).)

“A receiver may be appointed, in the manner provided by this chapter, by the court in which an action or proceeding is pending in any case in which the court is empowered by law to appoint a receiver.” (Code Civ. Proc. § 564(a).)

Code of Civil Procedure section 564(b) provides, in relevant part: “A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (1) In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor's claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured. (2) In an action by a secured lender for the foreclosure of a deed of trust or mortgage and sale of property upon which there is a lien under a deed of trust or mortgage, where it appears that the property is in danger of being lost, removed, or materially injured, or that the condition of the deed of trust or mortgage has not been performed, and that the property is probably insufficient to discharge the deed of trust or mortgage debt [¶] (9) In all other cases where necessary to preserve the property or rights of any party. [¶] (11) In an action by a secured lender for specific performance of an assignment of rents provision in a deed of trust, mortgage, or separate assignment document. The appointment may be continued after entry of a judgment for specific performance if appropriate to protect, operate, or maintain real property encumbered by a deed of trust or mortgage or to collect rents therefrom while a pending nonjudicial foreclosure under power of sale in a deed of trust or mortgage is being completed.” (Code Civ. Proc., § 564(b)(1), (2), (9), (11).)

For purposes of this section, “ ‘Borrower’ means the trustor under a deed of trust, . . . , where the deed of trust or mortgage encumbers real property security and secures the performance of the trustor or mortgagor under a loan, extension of credit, guaranty, or other obligation.” (Code Civ. Proc., § 564(e)(1).) “ ‘Secured lender’ means the beneficiary under a deed of trust against the real property security, or the mortgagee under a mortgage against

the real property security, and any successor in interest of the beneficiary or mortgagee to the deed of trust or mortgage.” (Code Civ. Proc., § 564(e)(5).)

“[S]ection 564 of the Code of Civil Procedure authorizes the appointment of a receiver on the application of the plaintiff or of any party whose right or interest in the property or funds is probable and where it is shown that the property or fund is in danger of being lost, removed or materially injured, and also in all cases where receivers have heretofore been appointed by courts of equity.” (*Snidow v. Hill* (1948) 84 Cal.App.2d 702, 704.)

“[T]rial courts enjoy a large measure of discretion, albeit not an entirely uncontrolled one, in deciding when to exercise their authority to appoint a receiver.” (*Medipro Medical Staffing LLC v. Certified Nursing Registry, Inc.* (2021) 60 Cal.App.5th 622, 627, internal quotes omitted.) “Because the appointment of a receiver transfers property—or in this case, a business—out of the hands of its owners and into the hands of a receiver, the appointment of a receiver is a very drastic, harsh, and costly remedy that is to be exercised sparingly with caution.” (*Id.* at p. 628, internal quotes & citations omitted.) Thus, “[d]ue to the extraordinary nature of this remedy and the special costs it imposes, courts are strongly discouraged—although not strictly prohibited—from appointing a receiver unless the more intrusive oversight of a receiver is a necessity because other, less intrusive remedies are either inadequate or unavailable.” (*Ibid.*, internal quotes omitted.)

The moving papers must establish one of the statutory grounds for appointment of a receiver by the preponderance of the evidence. (*Miller v. Oliver* (1917) 174 Cal. 407, 410; *Moore v. Oberg* (1943) 61 Cal.App.2d 216, 220 [preponderance of the evidence standard].)

“[B]ecause of the drastic character of the remedy, the discretion is not an entirely uncontrolled one but must be exercised with due regard for the facts in a particular case Ordinarily, if there is any other remedy, less severe in its results, which will adequately protect the rights of the parties, a court should not take property out of the hands of its owners. [Citations.]” (*Golden State Glass Corp. v. Superior Court* (1939) 13 Cal.2d 384, 393; *Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 872.)

A court has jurisdiction to appoint a receiver under Section 564 where a creditor seeks “to specifically enforce a provision of the mortgage or deed of trust assigning the rents and profits from the security to the creditor upon default, or specifically providing for the appointment of a receiver to take possession of the security and collect the rents and profits therefrom.” (*Turner v. Superior Court* (1977) 72 Cal.App.3d 804, 811; see *Barclays Bank of California v. Superior Court* (1977) 69 Cal.App.3d 593, 599-602 [court may appoint receiver where a trust deed provides that upon default the beneficiary shall be entitled to the appointment of a receiver].) A court may appoint a receiver under Section 564 to enforce specific performance of the terms and conditions of a mortgage. (*Mines v. Superior Court* (1932) 216 Cal. 776, 779.)

Although the Bank cites to Code of Civil Procedure section 564(b)(1), (2), (9), and (11), the Bank appears to primarily rely upon Section 564(b)(11).

The evidence submitted by the Bank provides the following facts. On November 19, 2019, Iridium, by and through Rogerson, as Manager of Iridium, executed a Loan Agreement for the purpose of the Bank making a loan to Iridium in the sum of \$11,895,000.00 (the “Loan”). (Declaration of David Scheiber (“Scheiber Decl.”), ¶ 4, Ex. 1.) Iridium, by and through Rogerson, made, executed and delivered to the Bank its Promissory Note dated

November 19, 2019, in the principal amount of \$11,895,000 (the “Note”). (*Id.*, ¶ 5, Ex. 2.) Through a Payment Deferral Agreement Summary and Payment Deferral Agreement, each dated May 26, 2020, certain payments under the Note were deferred (the “2020 Deferral Agreement”). (*Id.*, ¶ 6, Ex. 3.) The maturity date of the Note was extended to May 18, 2025, through a Loan Extension Agreement and Modification of Note dated December 30, 2024 (the “2024 Extension Agreement”), and an Extension Agreement and Amendment to Loan Documents dated March 5, 2025 (the “March 2025 Extension Agreement”). (*Id.*, ¶ 7, Exs. 4-5.) The maturity date of the Note was extended from May 18, 2025, to January 15, 2026, through a Second Extension Agreement and Amendment to Loan Documents dated November 6, 2025 (the “November 2025 Extension Agreement”). (*Id.*, ¶ 8, Ex. 6.)

As security for the Loan, Iridium, by and through Rogerson, executed and delivered to the Bank a Deed of Trust, Assignment of Rents, Security Agreement and Fixture Filing, dated November 19, 2019, naming Borrower as “Trustor” and the Bank as “Beneficiary” or “Lender,” to the Property, recorded on November 26, 2019, in the Official Records of the County of Orange as Instrument No. 2019000494308 (the “Deed of Trust”). (*Id.*, ¶ 9, Ex. 7.)

As an additional security for the Loan, Iridium, by and through Rogerson, executed and delivered to the Bank an Absolute Assignment of Rents, Lease Guaranties, Rents, Issues and Profits, dated November 19, 2019, naming Borrower as “Assignor” and the Bank as “Assignee,” recorded on November 26, 2019 in the Official Records of the County of Orange as Instrument No. 2019000494309 (the “Assignment of Rents”). (*Id.*, ¶ 10, Ex. 8.)

The Loan Agreement, Note, 2020 Deferral Agreement, 2024 Extension Agreement, March 2025 Extension Agreement, November 2025 Extension Agreement, Deed of Trust, and Assignment of Rents are collectively referred to as the “Loan Documents”.

In connection with the Loan Documents, both Rogerson and the Michael J. Rogerson Trust Dated May 7, 2011, as Amended (“Trust”) (collectively, the “Guarantors”) each executed a Commercial Guaranty (“Guaranties”) of all “Credit” of Borrower at any time due and payable to the Bank. (Scheiber Decl., ¶¶ 12-13, Exs. 9-10.)

The Bank has performed all terms and conditions under Loan Documents it was required to perform, including without limitation advancing no less than \$11,895,000.00 to Borrower, unless excused by either the Borrower or the Guarantors’ conduct. The Bank has performed all terms and conditions under the Guarantees it was required to perform, if any, unless excused by either the Borrower or the Guarantors’ conduct. (Scheiber Decl., ¶ 14.)

Iridium defaulted under the terms of the loan documents by failing to pay all sums due to the Bank on the January 15, 2026 maturity date. (Scheiber Decl., ¶ 17.)

As result of the default on the Note and Guaranties, as of April 9, 2026, the Bank is owed the sum of \$11,411.964.99 consisting of the principal sum of \$10,800,524.25 plus contractual interest in the sum of \$122,405.95 and default interest of \$489,034.79 (from May 18, 2025 to April 9, 2026). (Scheiber Decl., ¶ 20.)

Section 1.11 of the Deed of Trust states, in part:

1.11 Assignment And Collection of Rents. (a) Trustor hereby assigns absolutely to Lender the rents of the Property, with a revocable license to collect such rents as they become due and payable, prior to any default by Trustor under section 2 of this Deed of Trust, being retained by Trustor. (b) Upon any default by Trustor under

section 2 of this Deed of Trust, such license will, automatically, be deemed revoked without the necessity for any act or notice by Lender, and Lender, in person, by agent or by judicially appointed receiver, shall be entitled to enter upon, take possession of and manage the Property and may collect the rents of the Property, and, after so taking possession, shall be entitled to collect any rents that are past due

(Ex. 7 to Scheiber Decl., Deed of Trust, at p. 12, § 1.11.)

Under the Deed of Trust, Iridium, is the Trustor, and the Bank is the Beneficiary (Ex. 7 to Scheiber Decl., Deed of Trust, at p. 1.) As the Beneficiary under the Deed of Trust, the Bank is a secured lender within the meaning of Code of Civil Procedure section 564(b)(11). In addition, Plaintiff's Verified Complaint asserts a cause of action for specific performance for appointment of receiver and injunctive relief in aid of receiver (fourth cause of action).

Based on the foregoing, the Bank has demonstrated statutory grounds for appointment of a receiver by the preponderance of the evidence pursuant to Code of Civil Procedure section 564(b)(11).

The Bank has also demonstrated the necessity for the appointment of the receiver, and that there is no less severe remedy which will adequately protect the rights of the Bank.

The Bank submits evidence that in connection with the execution of the Loan Documents, Iridium provided to the Bank a copy of the rent roll for the Property as well as the leases for the Property; that the rent roll for the Property shows two tenants, Rogerson Aircraft with monthly rent is \$44,805.00 and Rogerson Capital with a monthly rent is \$113,935.00 for total monthly rent for the Property of \$158,740.00; that the leases are signed by Rogerson as the managing partner of Iridium and Rogerson as the CEO of Rogerson Capital and the CEO of Rogerson Aircraft Equipment Group; that Rogerson's Statement of Financial Condition which was provided in connection with the execution of the Loan Documents states that Rogerson is the owner and Chief Executive Officer of Rogerson Aircraft Equipment Group; and that Rogerson is a 100% owner of both Rogerson Aircraft Equipment Group and Rogerson Capital as well as that Rogerson is the 100% owner of Iridium. (Scheiber Decl., ¶¶ 23-24.) The Bank provides that on April 8, 2026, the Bank made Demands to Pay Rent to Secured Lender Cathay Bank pursuant to Civil Code section 2938 to Rogerson Capital and Rogerson Aircraft Equipment Group, demanding that all rents otherwise due to the Borrower be turned over to the Bank; and that counsel for Rogerson Aircraft, James C. Bastian, advised that the tenants did not have sufficient operating capital to pay the rent and that rent is currently unpaid. (Scheiber Decl., ¶¶ 25-26; Declaration of Hal D. Goldflam, ¶¶ 6-7, Ex. 2.) A subsequent email to Rogerson and Mr. Bastian on May 6, 2026, demanding that the rents were due from the Property pursuant to the leases, that they be turned over to the Bank, and inquiring as to the status elicited no response and no rents from the Property were turned over to the Bank. (Scheiber Decl., ¶ 27, Ex. 18; Declaration of Hal D. Goldflam, ¶ 8.)

In light of the common ownership of Rogerson Capital and Rogerson Aircraft Equipment Group to Iridium and Rogerson, the apparent inability of these tenants to pay rent, and the failure to comply with the Bank's demand to turnover the rents from the Property, it appears that less severe attempts were not successful, and the appointment of a receiver is necessary to "enter upon, take possession of and manage the Property and [] [to] collect the rents of the Property," as permitted under the Deed of Trust, as well as to collect any rents that are

past due. Without the appointment of a receiver, past and future rents from the Property appear to be in danger of being lost and/or not paid to Plaintiff.

Based on the foregoing, the Court **GRANTS** the OSC re: appointment of receiver.

California Rules of Court, rule 3.1177 states: “At the hearing of an application for appointment of a **receiver** on notice or at the hearing for confirmation of an ex parte appointment, each party appearing may, at the time of the hearing, suggest in writing one or more persons for appointment or substitution as receiver, stating the reasons. A party's suggestion is without prejudice to its objection to the appointment or confirmation of a receiver.”

Plaintiff provides that Plaintiff nominates Brian Weiss to serve as the Receiver. A Declaration of Brian Weiss (“Weiss”) has been filed which provides that Weiss is a California licensed CPA and partner with Force Ten Advisors, LLC (“Force 10”), that Weiss focuses on representing and restructuring businesses in and out of bankruptcy court, serving in various capacities, including financial advisor to debtors and creditors, chief restructuring officer, plan/liquidating trustee, and expert witness, that Weiss has served as a court-appointed receiver and in other similar fiduciary capacities including Liquidation Trustee and Transaction Manager, that Force 10 has served as a receiver and liquidation trustee in business and real property, that both Weiss and Force 10 are familiar with the Property, that Weiss intends to retain J. Fanelli Properties, LLC as the property management company for the Property, that Weiss intends to file an application to retain the law firm of Raines, Feldman, Littrell LLP to assist Weiss with the administration of the receivership, and the Weiss has no contract, agreement, or arrangement with Plaintiff regarding the fees of the receivership, the vendors that will be hired, the nature and extent of the capital expenditures to be made, and any compensation or commission on the sale of the Property. (See ROA 56, Declaration of Brian Weiss, ¶¶ 2-8.)

Given the lack of objection or opposition, the Court is inclined to appoint Brian Weiss. However, the Court will hear from Defendants at the hearing as to the appointment of Brian Weiss.

In addition, California Rules of Court, rule 3.1178 states: “At the hearing of an application for appointment of a receiver on notice or ex parte, the applicant must, and other parties may, propose and state the reasons for the **specific amounts of the undertakings** required from (1) the applicant by Code of Civil Procedure section 529, (2) the applicant by Code of Civil Procedure section 566(b), and (3) the receiver by Code of Civil Procedure section 567(b), for any injunction that is ordered in or with the order appointing a receiver.”

Code of Civil Procedure section 567 states: “Before entering upon the duties of a receiver: (a) The receiver must be sworn to perform the duties faithfully. (b) The receiver shall give an undertaking to the State of California, in such sum as the court or judge may direct, to the effect that the receiver will faithfully discharge the duties of receiver in the action and obey the orders of the court therein. The receiver shall be allowed the cost of the undertaking. (Code Civ. Proc. § 567.) “The premium the receiver pays for the undertaking is a cost of the receivership for which the receiver is reimbursed out of the assets on discharge. See CCP § 567(b).” (Cal. Judges Benchbook: Civ. Proceedings-Before Trial § 14.161.)

		Plaintiff has not addressed any undertaking. The Court will hear from Plaintiff and Defendants as to any required undertaking as set forth in California Rules of Court, rule 3.1178. Moving party to give notice.
11.	30-2023-01356430 Orellana vs. JW Marriott Anaheim Resort	1. Case Management Conference 2. Motion for Summary Judgment and/or Adjudication Defendant W.E. O’Neil Construction Co. of California moves for summary judgment or adjudication as to Plaintiff’s first cause of action for general negligence and second cause of action for premise liability. Defendant W.E. O’Neil Construction Co. of California moves for summary judgment or adjudication as to Plaintiff’s first cause of action for general negligence and second cause of action for premise liability. 1. FIRST CAUSE OF ACTION FOR NEGLIGENCE The “elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (<i>Gonzalez v. Interstate Cleaning Corp.</i> (2024) 106 Cal.App.5th 1026, 1034, as modified (Nov. 21, 2024).) “[W]hen a contractor completes work that is accepted by the owner, the contractor is not liable to third parties injured as a result of the condition of the work, even if the contractor was negligent in performing the contract, unless the defect in the work was latent or concealed.” (<i>Neiman v. Leo A. Daly Co.</i> (2012) 210 Cal.App.4th 962, 969, as modified (Nov. 14, 2012) [citing <i>Jones v. P.S. Development Co., Inc.</i> (2008) 166 Cal.App.4th 707, 712, 82 Cal.Rptr.3d 882 [Jones], disapproved on another ground in <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 532, fn. 7, 113 Cal.Rptr.3d 327, 235 P.3d 988; <i>Sanchez v. Swinerton & Walberg Co.</i> (1996) 47 Cal.App.4th 1461, 1466–1471, 55 Cal.Rptr.2d 415 [Sanchez].) This is referred to as the completed work doctrine. “The rationale for this doctrine is that an owner has a duty to inspect the work and ascertain its safety, and thus the owner’s acceptance of the work shifts liability for its safety to the owner, provided that a reasonable inspection would disclose the defect. [Citation.]” (<i>Ibid.</i>) Stated another way, “when the owner has accepted a structure from the contractor, the owner’s failure to attempt to remedy an obviously dangerous defect is an intervening cause for which the contractor is not liable.” (<i>Neiman v. Leo A. Daly Co.</i> (2012) 210 Cal.App.4th 962, 969, as modified (Nov. 14, 2012).) “The doctrine applies to patent defects, but not latent defects.” (<i>Neiman v. Leo A. Daly Co.</i> (2012) 210 Cal.App.4th 962, 969, as modified (Nov. 14, 2012).) “If an owner, fulfilling the duty of inspection, cannot discover the defect, then the owner cannot effectively represent to the world that the construction is sufficient; he lacks adequate information to do so.” (<i>Ibid.</i>) Whether a cause of action based on a construction defect is time barred depends on whether the defect is patent or latent. A patent defect is one that is “apparent by reasonable inspection” (Code Civ. Proc., § 337.1, subd. (e)), while a latent defect is one that “is not apparent by reasonable inspection” (Code Civ. Proc., § 337.15, subd. (b)). “ ‘The test to

determine whether a construction defect is patent is an objective test that asks “whether the average consumer, during the course of a reasonable inspection, would discover the defect....” [Citations.] This test generally presents a question of fact, unless the defect is obvious in the context of common experience; then a determination of patent defect may be made as a matter of law (including on summary judgment). [Citations.]’ [Citations.]” (*Delon Hampton & Associates, Chartered v. Superior Court* (2014) 227 Cal.App.4th 250, 255 (*Delon*); accord *Tomko Woll Group Architects, Inc. v. Superior Court* (1996) 46 Cal.App.4th 1326, 1338-1339 [nature of defect can be question of law].)

Here, the Court finds that the defect at issue is a patent defect that an average consumer, during the course of a reasonable inspection, would discover. As Defendant correctly points out, Plaintiff’s expert testified that the defect at issue is a patent defect. Plaintiff’s expert testifies:

“From an engineering and human factors perspective, a condition such as a shower door that does not open freely is readily detectable through even the most basic of inspections. A simple act of opening and closing the door by anyone tasked to look for door hinge resistance would reveal whether the hinge operated smoothly or whether resistance or binding was present. Such a condition requires no specialized training or tools to identify.” (Burns Decl., ¶ 11.)

Moreover, Defendant provides evidence, and Plaintiff does not dispute, that “[f]ollowing installation, W.E. O’Neil participated in walkthrough inspections of the guest room with multiple project stakeholders, including the design team, ownership representatives, and JW Marriott building engineers.” (Undisputed Fact No. 8.) Plaintiff also does not dispute that “[d]uring he walkthroughs, participants physically operated the shower glass doors and other fixtures.” (Undisputed Fact No. 9.) “W.E. O’Neil completed its work at the project in February 2020 and a Certificate of Occupancy was issued in February 2020.” (Undisputed Fact No. 16.)

Given the above, the Court finds that the completed work doctrine bars Defendant from being held liable by Plaintiff because, when a contractor completes work that is accepted by the owner and the defect at issue is a patent defect, the contractor is not liable to third parties injured as a result of the condition of the work, even if the contractor was negligent in performing the contract.”

The motion for summary adjudication is **GRANTED** as to the first cause of action for negligence.

2. SECOND CAUSE OF ACTION FOR PREMISE LIABILITY

To establish premises liability, Plaintiffs must allege: (1) that Defendants owned, leased, occupied, or controlled the premises; (2) that Defendants were negligent in the use or maintenance of the property; (3) that Plaintiffs suffered harm; and (4) that Defendants’ negligence was a substantial factor in causing the harm. (See CACI No. 1000; *Brooks v. Eugene Burger Mgmt. Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

“Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026, 1034, *as modified* (Nov. 21, 2024).) “The crucial element is control.” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1159.)

“In premises liability cases, summary judgment may properly be granted where a defendant unequivocally establishes its lack of ownership, possession, or control of the property alleged to be in a dangerous or defective condition.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81.) “This follows from the rule that the duty to take affirmative action for the protection of individuals coming onto one's property “is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Ibid.*) “Without the “crucial element” of control over the subject premises [citation], no duty to exercise reasonable care to prevent injury on such property can be found.” (*Id.* [internal citation omitted].)

Here, Defendant cannot be held liable for premise liability because the undisputed facts establish that Defendant did not “own, lease occupy, or control” the hotel room at issue at the time of the incident. In fact, “W.E. O’Neil completed its work at the project in February 2020 and a Certificate of Occupancy was issued in February 2020.” (Undisputed Fact No. 16.)

Plaintiff also admits that she has “no facts, witnesses or documents to support her claim for Premises Liability as to W.E. O’Neil.” (Undisputed Fact No. 16.)

In addition, in the body of the opposition, Plaintiff does not argue that she has a meritorious premise liability claim. Plaintiff only argues and presents legal authority as to her negligence claim.

The motion for summary adjudication as to the second cause of action for premise liability is **GRANTED**.

In sum, the Motion for Summary Judgment is **GRANTED in its entirety**.

Moving party to give notice.